

factual allegations made therein, noting as their source both myself and the proof (or should I say lack of proof) offered following comprehensive and complete discovery (that I understand the Plaintiff has nonetheless violated, by offering additional but inadmissible letters and emails from friends, that he failed to provide in response to duly issued discovery demands. *Why am I not surprised and again, when will this ever end?!?*)

4. As is clear, the Plaintiff (at least Mr. DeSousa whose passing I was sincerely sorry to hear of) was an angry man filled with hate, wrath and rage for me and my lifestyle. He labelled me a faggot, homo and in this underlying action a “nuisance” when in fact it is this action that is the nuisance.

5. I will not belabor the point but rather note the subtler proof of Plaintiff’s hatred including even:

- A. his attorney’s reference to Mr. DeSousa as “Mr. DeSousa” but his denigrating description of me with no identity of similar title or respect, repeatedly referring to me as “Calvagno”;
- B. his deliberate decision to depose Westbury Jeep employees with whom I work on a daily basis, to allegedly support his claim that I had the exhaust on my car “modified.” The testimony of course, failed to prove that fact, but nonetheless served Plaintiff’s ulterior motives to embarrass me in front of my peers (deliberately and maliciously forcing them to retain counsel for a deposition that failed to prove the car had been modified and that tried to prove the workers incompetent) and thus compromise my employment. Thank goodness, my boss understood, the malice and malevolent motives of Plaintiff’s abusive conduct; and
- C. By way of illustration but certainly not limitation, Mr. DeSousa’s: petitioning and division of our neighbors in a pattern meant to malign and alienate me; constant communications with police and other officials who Plaintiff repeatedly called to my door and **NONE of whom issued a violation for excessive noise or uncontained trash or debris**; and his ongoing harassment of me with meritless complaints that my manufacturer delivered (and

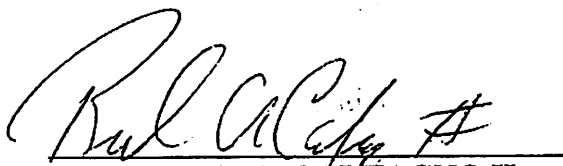
unmodified car) is too loud (nonetheless noting that I am away from my home ALL DAY, every weekday.)

6. I am not a nuisance as Plaintiffs have cruelly (but inadequately) identified me. I am a proud gay man who drives a legally permissible loud car (manufacturer modelled without modification) and lives in a beautiful home I respectfully maintain and enjoy sharing with my friends. Unfortunately all I strive to maintain, was located across the street from a couple who did not approve of my lifestyle and who maliciously sued me in this action forcing me and my Co-Defendant (a friend who helped me with the mortgage, who does not live in the home and whom Plaintiffs never even met) to spend tens of thousands of dollars in the defense of meritless litigation designed to vindictively harass and punish me for the otherwise acceptable lifestyle I live.

7. Having established through my attorney's annexed affirmation that the causes of action cannot be sustained, I beg this Court to award to me summary judgment along with an award of attorney's fees as requested to punish this prejudice.

WHEREFORE, your Defendant prays for an order granting to me and my Co-Defendant, the relief requested in my annexed Order to Show Cause in its entirety, together with such other and further relief as to this Court may seem just and proper.

Dated: May 4, 2026


RICHARD A. CALVAGNO II

I, **RICHARD A. CALVAGNO II**, affirm on this 14th day of May 2026, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the forgoing is true, and I understand that this document may be filed in an action or proceeding in a Court of Law.



RICHARD A. CALVAGNO II